



DEPARTMENT OF AGRICULTURE

Agriculture Commissioners Office

RULES AND REGULATIONS PERTAINING TO THE ADMINISTRATION AND ENFORCEMENT OF § 35-45-109, C.R.S.

8 CCR 1207-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Part 1. Definitions.

- 1.1. "Board" means a board of district advisers created pursuant to § 35-45-109 (2)(a), C.R.S.
- 1.2. "Permittee" means a person or group of persons who hold a lease(s) or permit(s) to graze livestock upon public lands under the jurisdiction of a Bureau of Land Management District Office.

Part 2. Petition process for establishing a board of district advisers.

- 2.1. Upon submission to the commissioner of a petition signed by a simple majority of the livestock lessees and permittees within the jurisdiction of a grazing district, the commissioner shall establish a board of district advisers for that grazing district.
- 2.2. The petition shall be in writing and shall be substantially similar to the following:

Do not sign this petition unless you are an eligible permitted or lessee. To be an eligible permittee or lessee, you must have a grazing permit or lease in the _____ grazing district. A "permittee" is a person or group of persons who hold a lease(s) or permit(s) to graze livestock upon public lands under the jurisdiction of a Bureau of Land Management District Office.

PETITION FOR THE CREATION OF A BOARD OF DISTRICT ADVISERS

Pursuant to § 35-45-109, C.R.S. (1993 Supp.), the following permittees or lessees petition the Colorado Commissioner of Agriculture for the creation of a board of district advisers for the _____ grazing district.

SIGNATURE	PRINTED NAME	NAME (COMPANY OR INDIVIDUAL)	ADDRESS	RESOURCE AREA	DATE

2.3. Along with a petition, those permittees desiring to establish a board of district advisers shall submit to the commissioner a list of all persons and authorized agents, if any, who hold a lease or permit to graze livestock upon public lands under the jurisdiction of a Bureau of Land Management District Office.

2.4. When a majority of permittees petition the commissioner to create a board, the commissioner shall appoint an interim board pursuant to Part 3 of this rule, to conduct necessary affairs for a period not to exceed 120 days.

2.5. Within 30 days after the commissioner establishes an interim board, nominations for election to a board shall be submitted to the commissioner from persons who hold a lease or permit to graze livestock upon public lands under the jurisdiction of a Bureau of Land Management District Office.

2.6. Within 60 days after the close of nominations, the livestock lessees and permittees shall elect individuals to the board.

Part 3. Composition of board.

3.1. Only an individual permittee or an authorized agent of a permittee who holds a grazing lease or permit on public lands under the jurisdiction of a Bureau of Land Management District Office shall be eligible to serve as a member of a board.

3.2. Each board shall be composed of five to nine members. Unless otherwise designated by the petitioners, the board shall be composed of 5 members.

3.3. Each board shall be composed of proportionate representation from the District's Resource Areas. To the extent that it is practical, the board shall be composed of sheep and cattle grazing permittees or lessees from each Resource Area.

Part 4. Member service.

4.1. Board members shall serve a term of three years, and individuals may be re-elected to no more than three successive terms. Board terms expire on March 1. However, the first term of a newly-created board (pursuant to Part 2 of this rule) shall serve for three to four years so as to allow the boards to complete three full years of service.

4.2. No board member shall participate in deliberations or vote on any matter in which the member has a direct interest.

4.3. Upon receiving a written request from the board, or in the judgment of the commissioner, the commissioner may terminate the service of a member to a board if:

- (a) such action is in the public interest and such action will facilitate the fulfillment of the responsibilities of the board;
- (b) a board member no longer meets the requirements under which elected;
- (c) the member or permittee fails to meet the provisions of Part 3 of this rule; or
- (d) the member or permittee fails or is unable to participate regularly in board work.

4.4. Board service shall be without cost to the state.

4.5. In the event of a vacancy occurring under section 4.3, or a vacancy occurring for any other reason, the commissioner shall, in consultation with the affected board, appoint an individual to serve the unexpired term. Consideration shall be given to those nominees who received a large number of votes in the prior election. Any person appointed by the commissioner must meet the requirements of part 3.1 and 3.3.

Part 5. Election process.

5.1. The boards shall solicit, by mail, nominations from the permittees in accordance with Part 3 of this rule.

5.2. Nominations to the boards that will be placed on the ballot shall be submitted to the commissioner by December 1 before the expiration of the current board members' terms. The commissioner shall review and may refuse any nomination or nominations under the criteria set forth in Part 3 and Part 4 of this rule.

5.3. Elections may be held any time after January 1 before the expiration of the current board members' terms but shall be held at least 5 working days before the expiration of the current board members' terms.

5.4. Results of the election must be promptly reported to the Commissioner.

Part 6. Meetings.

6.1. Meetings of the board shall be open to the public and shall be subject to the provisions of §§ 24-6-401 and 402, C.R.S. The public shall be given opportunity to express opinions on the items under consideration.

Part 7. Records.

7.1. Detailed records shall be kept of each meeting of a board. These records shall include the following:

- (a) The time and place of the meeting;
- (b) Copies of the public notices announcing the meeting;
- (c) A list of members of the board present;
- (d) The meeting agenda;

- (e) A complete and accurate summary description of matters discussed and conclusions reached;
- (f) A list of recommendations made by the board;
- (g) Copies of all reports received, issued, or approved by the board; and
- (h) All records of the board are public records as defined in § 24-72-202, C.R.S.

Part 8. Public funds.

8.1. All moneys under the control of the board are public moneys and subject to §§ 11-10.5-101 to 112, C.R.S. the Public Deposit Protection Act.

Editor's Notes

History